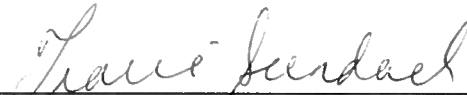


**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
JAMES SMITH,**Plaintiff,****-against-****CITY OF NEW YORK, POLICE OFFICER BAUDILIO
GARCIARIVAS, BADGE NUMBER 010251, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 40TH PRECINCT,****Defendants.**
-----X**Index No.:****Date Purchased:****Plaintiff designates Bronx
County as the place of trial.****Basis of venue is place
of occurrence.****SUMMONS****Plaintiff resides at
860 Courtlandt Avenue
Bronx, New York 10451****To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: White Plains, New York
November 1, 2013**
**TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
JAMES SMITH
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100****Defendants' addresses:****CITY OF NEW YORK
100 Church Street
New York, New York 10007****POLICE OFFICER BAUDILIO GARCIARIVAS,
BADGE NUMBER 010251, c/o
40th Precinct
257 Alexander Avenue
Bronx, New York 10454**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JAMES SMITH,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER BAUDILIO
GARCIARIVAS, BADGE NUMBER 010251, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 40TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff JAMES SMITH by and through his attorneys, TRACIE A. SUNDACK &
ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER
BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED
POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and
still is a municipal corporation duly organized and existing under and by virtue of the General
Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents
servants and employees operated, maintained and controlled The New York City Police
Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER BAUDILIO
GARCIARIVAS, BADGE NUMBER 010251, was employed by Defendant CITY OF NEW
YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER BAUDILIO
GARCIARIVAS, BADGE NUMBER 010251, acted within the scope of his employment for
Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER BAUDILIO
GARCIARIVAS, BADGE NUMBER 010251, was acting under the color and pretense of the

statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of his office as a police officer for said county and city.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of their office as police officers for said county and city.

9. That on August 27, 2012, at approximately 2:40 a.m., Plaintiff JAMES SMITH was lawfully inside 225 Willis Avenue in the County of Bronx, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT.

10. That on the aforementioned date, time and place, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, stopped Plaintiff JAMES SMITH ordered Plaintiff to show them identification, and frisked Plaintiff despite Defendants' knowledge that they lacked reasonable suspicion to do so.

11. Thereafter, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT handcuffed Plaintiff JAMES SMITH and placed him under arrest despite

Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff JAMES SMITH was transported to the 40 Precinct (257 Alexander Avenue, Bronx, New York 10454) and thereafter to Bronx Central Booking for arraignment (Docket Number 2012BX048211).

13. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT initiated criminal proceedings against Plaintiff JAMES SMITH despite Defendants' knowledge that they lacked probable cause to do so.

14. That Plaintiff JAMES SMITH was held in defendants' custody from August 27, 2012, until he was released on his own recognizance on September 19, 2012.

15. That on or about January 8, 2013, all charges against Plaintiff JAMES SMITH related to the complained of incident were dismissed (Docket Number 2012BX049487).

16. That on November 15, 2012, within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff JAMES SMITH duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

17. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT.

18. That, upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing in this matter because Plaintiff was incarcerated.

19. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

20. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

21. That at the aforementioned time and place, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, placed Plaintiff JAMES SMITH under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

22. That Plaintiff JAMES SMITH had not committed any offense and Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

23. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff JAMES SMITH and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff JAMES SMITH and such actions were committed in bad faith.

24. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff JAMES SMITH and such actions were committed in bad faith.

25. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff JAMES SMITH was deprived of the rights and immunities secured to him under the

Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

26. As a further result of the above-described acts, Plaintiff JAMES SMITH was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

27. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. That Plaintiff JAMES SMITH was falsely imprisoned from approximately 4:30 a.m. on August 27, 2012, to approximately September 19, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

29. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT intended to confine Plaintiff JAMES SMITH and Plaintiff JAMES SMITH was conscious of the confinement, and Plaintiff JAMES SMITH did not consent to the confinement.

30. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff JAMES SMITH and

damaging Plaintiff JAMES SMITH in his reputation and depriving him of his liberty.

31. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff JAMES SMITH suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

32. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT misrepresented and falsified evidence before the District Attorney.

34. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT did not make a complete and full statement of facts to the District Attorney.

35. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT withheld exculpatory evidence from the District Attorney.

36. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff JAMES SMITH.

37. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff JAMES

SMITH.

38. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT acted with malice in initiating criminal proceedings against Plaintiff JAMES SMITH.

39. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff JAMES SMITH.

40. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff JAMES SMITH.

41. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT acted with malice in continuing criminal proceedings Plaintiff JAMES SMITH.

42. That Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

43. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, the criminal proceedings were terminated in Plaintiff JAMES SMITH's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

44. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of

this complaint and further alleges:

45. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

46. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

47. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff JAMES SMITH.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JAMES SMITH as alleged herein.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff JAMES SMITH as alleged herein.

50. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff JAMES SMITH's constitutional rights.

51. All of the foregoing acts by defendants deprived Plaintiff JAMES SMITH of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;

- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

52. Plaintiff JAMES SMITH repeats, reiterates and realleges each and every allegation contained in this complaint.

53. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff JAMES SMITH's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

54. As a result of the aforementioned conduct of the individual Defendants, Plaintiff JAMES SMITH's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

55. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

56. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, arrested Plaintiff JAMES SMITH in the absence of probable cause and without a warrant.

57. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, Plaintiff JAMES SMITH was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

58. The aforesaid actions by Defendants POLICE OFFICER BAUDILIO

GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT constituted a deprivation of Plaintiff JAMES SMITH's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

59. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

60. As a result of the foregoing, Plaintiff JAMES SMITH was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

61. Plaintiff JAMES SMITH was conscious of said confinement and did not consent to same.

62. The confinement of Plaintiff JAMES SMITH was without probable cause and was not otherwise privileged.

63. As a result of the aforementioned conduct, Plaintiff JAMES SMITH has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

64. Plaintiff JAMES SMITH repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

65. On or about August 27, 2012, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, commenced a criminal proceeding against Plaintiff JAMES SMITH, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

66. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH

PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff JAMES SMITH had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

67. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, were directly and actively involved in the initiation of criminal proceedings against Plaintiff JAMES SMITH.

68. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff JAMES SMITH.

69. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, were motivated by actual malice in initiating criminal proceedings against Plaintiff JAMES SMITH.

70. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, misrepresented and falsified evidence before the District Attorney.

71. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, did not make a complete and full statement of facts to the District Attorney.

72. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, withheld exculpatory evidence from the District Attorney.

73. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH

PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff JAMES SMITH.

74. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, lacked probable cause to continue criminal proceedings against Plaintiff JAMES SMITH.

75. Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, were motivated by actual malice in continuing criminal proceedings against Plaintiff JAMES SMITH.

76. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff JAMES SMITH's favor.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION UNDER NEW YORK STATE LAW**

77. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

78. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise

careless, negligent and reckless.

79. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION UNDER NEW YORK STATE LAW**

80. Plaintiff JAMES SMITH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

81. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff JAMES SMITH. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

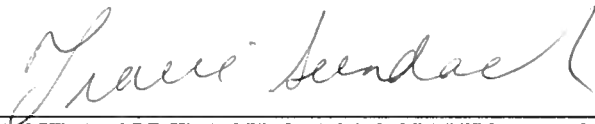
82. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40th PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff JAMES SMITH.

83. As a result of the foregoing, Plaintiff JAMES SMITH is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive

damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff JAMES SMITH demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER BAUDILIO GARCIARIVAS, BADGE NUMBER 010251, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 40TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 1, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
JAMES SMITH
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
October 16, 2013



TRACIE A. SUNDACK